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Case Number: 25TRCV02690 Hearing Date: August 24, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Monday, August 24, 2026

Department M Calendar No.

PROCEEDINGS

Ami Pera, et al. v. American Honda Motor Co., Inc., et al.

25TRCV02690

1. Ami

Pera, et al.'s Motion to Compel Further Responses to Request for Production of Documents

2. Ami

Pera, et al.'s Motion to Compel Deposition of Defendant's Person Most Knowledgeable

3. Ami

Pera, et al.' Motion to Enforce Deposition Subpoena as to Ashton Carroll

TENTATIVE RULING

Ami

Pera, et al.'s Motion to Compel Further Responses to Request for Production of Documents

is granted.

Ami

Pera, et al.'s Motion to Compel Deposition of Defendant's Person Most Knowledgeable is granted.

Ami

Pera, et al.' Motion to Enforce Deposition Subpoena as to Ashton Carroll is denied without prejudice.

Background

Plaintiffs filed the Complaint on August 12, 2025. Plaintiffs allege the following facts. This is an action under the Song-Beverly Act. The vehicle at issue is a 2022 Acura MDX purchased on February 5, 2023. The vehicle suffers from defects to the electrical system.

Motion to Compel Further Responses to Requests for Production of Documents

A party responding to an inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. (Code Civ. Proc., § 2031.210, subd. (a).) A response to an inspection demand may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a demand. (Code Civ. Proc., § 2031.310, subd. (a).)

If a demanding party believes the responding party responded inadequately, the demanding party may move for an order compelling further response. (Code Civ. Proc., § 2031.310, subd. (a).) "Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (Code Civ. Proc., §

2031.310, subd. (c).)

Meet and Confer

Plaintiff set forth a meet and confer declaration in substantial compliance with CCP § 2031.310(b)(2). (Declaration, Astrid Souto, ¶¶ 6-8).

Motion to Compel

The Court notes that the parties did not schedule an informal discovery conference (“IDC”) prior to the hearing and ruling upon of this motion. The Court elects to rule on this motion without an IDC this time to further efficiency and economy. However, the Court admonishes both parties and informs the parties that any future motions to compel further responses to written discovery requests requires an IDC prior ruling on the motions.

A party responding to an inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. Code Civ. Proc., § 2031.210, subd. (a).) CCP § 2031.230 states: “A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.”

Requests for Production of Documents numbers 9, 16, 17, 53, 54, 59, 61, and 62 are at issue in this motion.

As to all the requests at issue in this motion, the motion is granted. Defendant’s initial responses were untimely served and thus Defendant has waived all objections. The response is due 30 days after service of the demand. CCP § 2031.260. Failing to respond to a demand within the time permitted waives all objections. CCP § 2031.300(a). Here, the demand was served

on August 29, 2025. Responses were not served until January 29, 2026, and, in fact, verified responses were not served until after this date, January 30, 2026, at the earliest. (Decl., Souto, Exs. 2, 3). At a minimum, Defendant is entitled to further responses that are free of any objections.

Request 9 seeks all documents “regarding, pertaining, or relating” to the vehicle.

Defendant served a substantive response that appears to be in substantial compliance with CCP § 2031.230. The Court does note however that a response stating that no documents have ever existed to a request that essentially seeks all documents relating to the vehicle is dubious. The Court does note however that the request itself is overly broad as Plaintiff is essentially requesting every document that could have ever existed regarding the vehicle. Presumably, this request would have eliminated the need for many of the other requests that may have been served. However, as noted above, Defendant has waived all objections, and, thus, Plaintiff is entitled to a substantive response. Defendant is reminded that verified responses are made under penalty of perjury, and, as mentioned above, stating that no documents existed to this request lacks credibility.

Request 16 seeks: “All DOCUMENTS evidencing any COMMUNICATION between Defendant and any independent dealer, service facility, and/or any other person or entity providing assistance to Defendant regarding the SUBJECT VEHICLE.”

Request 17 seeks: “All DOCUMENTS to include but not limited to manuals, publications, directives and direct dealer notifications or advisements regarding, pertaining, or relating to handling warranty repairs on the SUBJECT VEHICLE.”

Essentially, the request seeks all communications and documents without narrowing the scope of the request to issues and defects involved in this litigation. However, to the extent that Defendant appears to state that it will respond subject to certain withholding of privileged documents, Defendant has waived any objections based on privilege. Defendant also waived any objections based on the grounds that the requests are overly broad.

Request 53 seeks: “Any Warranty Policy and Procedure Manual published by YOU and provided to YOUR Authorized Repair Facility(ies),

within the state of California, from the date of vehicle production to the present.”

Defendant served a response in substantial compliance with CCP § 2031.230. However, it is curious that Defendant then chose to identify a document that it would produce despite stating that no documents exist. But, Defendant did state specifically that the production of the document is not necessarily in compliance with this request but in the spirit of cooperation.

Request 54 seeks: “A copy of the Workshop Manual specifying diagnosis and repair procedures for vehicles of the same year, make, and model as the SUBJECT VEHICLE.”

Defendant served a response in substantial compliance with CCP § 2031.230.

Request 59 seeks: “All training manuals and/or other DOCUMENTS relating to the training given to YOUR employees, agents, and representatives in connection with handling consumer lemon law repurchase requests, since the date of the SUBJECT VEHICLE production to the present.”

Defendant served a response in substantial compliance with CCP § 2031.230.

Thus, as to Requests 9, 16, 17, 53, 54, and 59, while the substantive portions of the responses are substantially code-compliant, in part, Defendant has also interposed numerous objections. As noted above, Defendant has waived all objections, and, thus, Plaintiff is entitled to further responses that are free from any objections.

Request 61 seeks: “All DOCUMENTS reflecting YOUR plans, policies, procedures, programs, or measures for achieving any of YOUR warranty buyback reduction goals, since the date of the SUBJECT VEHICLE production to the present.”

Request 62 seeks: “All DOCUMENTS from the date of vehicle production to the present related to YOUR goals to reduce the costs associated with repurchases or replacements, including all warranty trend reports for this period.”

The motion is granted. The requests seek documents that may lead to the discovery of admissible evidence. The buyback process under the warranty is an issue at the heart of this litigation. To the extent that Defendant appears to be asserting that documents are being withheld based on a privilege, Defendant has waived all objections based on privilege.

Defendant is ordered to serve further responses to the requests within 20 days of this date.

Motion to Compel Deposition

The party noticing the deposition may move for an order compelling appearance at the deposition and production of documents, pursuant to the deposition notice, from the party deponent who fails to appear or produce materials requested in the deposition notice, and who has not served a valid objection under § 2025.410(a). CCP § 2025.450(a).

“The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” CCP § 2025.450(b)(2). Plaintiff adequately set forth a meet and confer declaration stating that Plaintiff contacted the deponent to inquire about the nonappearance. (Decl., Astrid Souto, ¶¶ 6-12).

Plaintiff moves for an order compelling Defendant's person most knowledgeable to appear and testify at his or her deposition. The motion is made on the grounds that Defendant has not made the deponent available for deposition and, despite numerous notices and continuances, Defendant has failed to provide a date for the deposition. Defendant filed no written opposition to the motion.

Thus, Plaintiff's motion to compel deposition is granted. Defendant's person most knowledgeable is ordered to appear for deposition and produce documents at a date and time that can be agreed upon by the parties. If no agreement can be reached, the deponent is ordered to appear at a reasonable date and time to be

determined by the moving party.

Sanctions

Plaintiff's

notice of motion is defective with respect to sanctions. Code Civ. Proc., § 2023.040 states, in relevant part: "A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought." Plaintiff's counsel's declaration sets forth a calculation of attorneys' fees expended and a request for sanctions. However, the notice did not request sanctions, and, therefore, the request for sanctions is denied.

Motion to Compel Appearance and Production of Documents Pursuant to Deposition Subpoena

Where the witness whose deposition is sought is not a party, a subpoena must be served to compel the witness' attendance, testimony, or production of documents. CCP §§ 2020.010(b), 2025.280(b); *Terry v. SLICO* (2009) 175 Cal.App.4th 352, 357. Personal service of a deposition subpoena obligates a California resident to appear, testify and produce documents specified in the subpoena, and to appear in any proceedings to enforce discovery. CCP § 2020.220(c). The deposition subpoena may be enforced by a motion to compel compliance pursuant to CCP § 1987.1. If a nonparty disobeys a deposition subpoena, the subpoenaing party may seek a court order compelling the nonparty to comply with the subpoena within 60 days after completion of the deposition record. CCP § 2025.480(b); *Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, 127.

Pursuant to Code Civ. Proc. § 1987.1: "If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person."

Cal. Rules of Court Rule 3.1345(a)(5) states:

“Except as provided in (b), any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion: (5) To compel or to quash the production of documents or tangible things at a deposition.”

Cal. Rules of Court, Rule 3,1345(b) states:

“A separate statement is not required under the following circumstances:

(1) When no response has been provided to the request for discovery; or

(2) When a court has allowed the moving party to submit--in place of a separate statement--a concise outline of the discovery request and each response in dispute.”

Plaintiff moves “for an Order to Enforce Plaintiffs’ Deposition Subpoena as to Ashton Carroll, General Manager of DCH Tustin Acura. Plaintiffs further request an order compelling the production of all documents requested in the deposition subpoena, as well as an award of monetary sanctions pursuant to Code of Civil Procedure sections 2025.480(j) and 1992 as to Defendant under an ostensible agency theory, or, alternatively, against Mr. Carroll and/or Mr. Carroll’s potential counsel, if this Court does not believe an agency theory applies. Further, Plaintiffs request sanctions pursuant to Code of Civil Procedure section 2025.440(b) and 2020.240 against Ashton Carroll to ensure that his deposition moves forward prior to the time Defendant’s Motion for Summary Judgment is scheduled to be heard.” (Notice of Motion, p. 2, lines 4-12).

A deposition subpoena served to a non-party such as Ashton Carroll must be personally served. There are no competent facts to establish proper service by personal service. In fact, the proof of service of the deposition subpoena verifies that Ashton Carroll was not personally served but instead service was apparently effectuated upon an individual named Erik Cespedes at 9 Auto Center Dr, Tustin, CA 92782. Without proper personal service

of a deposition subpoena, a non-party deponent cannot be compelled to comply with the deposition subpoena.

Thus, Ami Pera, et al.' Motion to Enforce Deposition Subpoena as to Ashton Carroll is denied without prejudice.

Sanctions

Plaintiff's request for sanctions is denied without prejudice.

Plaintiff is ordered to give notice of this ruling.